

An Act

ENROLLED HOUSE
BILL NO. 3278

By: Pfeiffer and McCane of the
House

and

Howard of the Senate

An Act relating to the Open Meeting Act; amending 25 O.S. 2021, Section 314, which relates to violations of the Open Meeting Act; allowing the Attorney General to enter into a consent order or issue a finding of violation to a public body, agency, or officer; providing consent order content; providing findings content; allowing the Attorney General to require proof of compliance; permitting application to the district court for enforcement; providing jurisdiction; requiring court order for compliance, civil penalties, costs, and other remedies under certain circumstances; requiring payment of attorney fees for bad-faith violations; providing service procedures; defining term; and providing an effective date.

SUBJECT: Open Meeting Act

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 25 O.S. 2021, Section 314, is amended to read as follows:

Section 314. A. Any person or persons willfully violating any of the provisions of ~~this act~~ the Open Meeting Act shall be guilty of a misdemeanor and upon conviction shall be punished by a fine not exceeding Five Hundred Dollars (\$500.00) or by imprisonment in the county jail for a period not exceeding one (1) year or by both such fine and imprisonment.

B. Following a violation of this act, any person:

1. May bring a civil suit for declarative or injunctive relief, or both; and

2. If successful, shall be entitled to reasonable attorney fees.

C. If the public body successfully defends a civil suit and the court finds that the suit was clearly frivolous, the public body shall be entitled to reasonable attorney fees.

D. In addition to criminal and civil penalties provided in this section, the Attorney General may determine after an investigation, by the greater weight of the evidence, that a public body, agency, or officer has violated the Open Meeting Act, and may, at any time prior to filing an action pursuant to subsection A of this section, enter into a consent order with a public body, agency, or officer, or may issue a finding of violation to a public body, agency, or officer.

E. 1. If the Attorney General enters into a consent order with a public body, agency, or officer, the consent order may contain admissions of fact and any of the following:

- a. for first-time violations after the effective date of this act, required completion of training approved by the Attorney General concerning the requirements of the Open Meeting Act,
- b. for subsequent violations after the effective date of this act, imposed civil penalties up to One Hundred Fifty Dollars (\$150.00) for each violation, and
- c. language that the public body will comply with the Open Meeting Act.

2. The consent order shall bear the signature of the head of the public body, agency, or any officer found to have violated the Open Meeting Act, and of any other person required by the Attorney General.

F. If the Attorney General issues a finding of violation to a public body, agency, or officer, the finding may contain findings of fact and conclusions of law and may require a public body, agency, or officer to do any or all of the following:

1. Cease and desist from further violation of the Open Meeting Act;

2. Comply with the provisions of the Open Meeting Act;

3. Complete training approved by the Attorney General concerning the requirements of the Open Meeting Act; and

4. Pay a civil penalty in an amount not to exceed Three Hundred Dollars (\$300.00) for each violation.

G. The Attorney General may require submission of proof that the requirements of any consent order or finding of violation have been satisfied.

H. 1. The Attorney General may apply to the district court to enforce a consent order or finding of violation. Prior to applying to the district court, the Attorney General shall make a demand to the public body, agency, or officer to comply with the consent order or finding of violation and afford reasonable opportunity for the public body, agency, or officer to cure the violation.

2. An enforcement action under paragraph 1 of this subsection may be filed in the district court of the county where the consent order or finding of violation is issued or is effective. The district court of any county shall have jurisdiction to enforce any consent order or finding of violation.

3. If the district court finds the Attorney General did not abuse the discretion of the Attorney General in entering into the consent order or issuing the finding of violation, the district court shall enter an order that:

a. enjoins the public body, agency, or officer to comply with the consent order or finding of violation,

b. imposes a civil penalty as provided for in this section. The penalty shall be set by the court in an amount not less than the amount recommended by the Attorney General, nor more than Three Hundred Dollars (\$300.00) for each violation,

c. requires the public body or agency to pay the court costs and costs incurred by the Attorney General in investigating the violation, and

d. provides for any other remedy authorized by this section that the court deems appropriate.

I. If a court finds in an enforcement action under subsection H of this section, that any of the provisions of the Open Meeting Act were violated, such court:

1. May require the public body or agency to pay the reasonable attorney fees of the Attorney General; and

2. Shall require the public body or agency to pay the reasonable attorney fees of the Attorney General, if the violation by the public body or agency was not made in good faith and without a reasonable basis in fact or law.

J. Any finding of violation issued by the Attorney General under this section shall be served on the public body, agency, or officer:

1. By certified mail, return receipt requested, to the last known place of business, residence, or abode within or without this state; or

2. In the manner provided under Section 2004 of Title 12 of the Oklahoma Statutes.

K. The Attorney General shall maintain and make available for public inspection, copying, and mechanical reproduction all consent orders entered and all findings of violation issued pursuant to this section.

L. For the purposes of this section, "district court" means:

1. For state agencies, boards, commissions, or members thereof, the District Court of Oklahoma County; or

2. For county and municipal boards, commissions, or members thereof, the district court in which the member or governing board is primarily located.

SECTION 2. This act shall become effective January 1, 2027.

Passed the House of Representatives the 10th day of March, 2026.

Presiding Officer of the House
of Representatives

Passed the Senate the 28th day of April, 2026.

Presiding Officer of the Senate

OFFICE OF THE GOVERNOR

Received by the Office of the Governor this _____
day of _____, 20_____, at _____ o'clock _____ M.
By: _____

Approved by the Governor of the State of Oklahoma this _____
day of _____, 20_____, at _____ o'clock _____ M.

Governor of the State of Oklahoma

OFFICE OF THE SECRETARY OF STATE

Received by the Office of the Secretary of State this _____
day of _____, 20_____, at _____ o'clock _____ M.
By: _____